

International Jurisdiction and the Regulation of Cyberspace

Modes of Learning

For this module, the following modes of learning will be used:

- Interactive Module
- Textbook Readings
- Online Quizzes

Introduction

This module reviews the growing problem of global cybercrime and the Canadian and worldwide initiatives that are employed to combat it.

The internet allows for the instant exchange of information worldwide. While the internet facilitates interconnectivity, it also facilitates cybercrime, which expands as the use of the internet continues to grow.

Over the past few years, many countries have increased their regulatory enforcement and policing efforts, to enable effective cross-border cybercrime investigations through joint efforts to collect evidence and investigate criminal activities inter-jurisdictionally.

As the internet transcends national borders, the regulatory approach to cybercrime therefore must be international in scope. Consider the following:

The physical evidence required to arrest and prosecute cybercrime suspects can be located anywhere in the world.

Cybercriminals have the luxury of operating in countries that have minimal or no laws against cybercrime.

Investigating and extraditing cybercrime suspects is very difficult.

As you begin this module, please refer to the timeline and make note of any assessments or important dates. If you have any questions, ask your instructor.

Learning Outcomes

Upon completion of this module, you will be able to:

1. Describe how cybersecurity affects the current state of the Canadian, American and European legal systems.
2. Analyze and compare cyber laws, describing how they pertain to cybersecurity.

Key Terms & Concepts

Listed below are some important key terms and concepts within this module.

- Convention on Cybercrime
- Council of Europe
- Dual Criminality
- Extradition
- Traffic Data
- Mutual Assistance
- Mutual Legal Assistance Treaty (MLAT)

The Importance of International Conventions

Without inter-jurisdictional regulation, cybercriminals can move their operations to countries that have weaker cybercrime laws. Mutual legal assistance treaties (MLATs) are necessary to enable cooperative efforts between countries, to prosecute offenders.

An MLAT is an agreement between two or more countries, for the purpose of gathering and exchanging information to enforce public or criminal laws. Under these agreements, modern states have developed procedures for requesting and obtaining evidence for criminal investigations and prosecutions. MLATs are useful for targeting cybercrime offences such as hacking, identity theft and fraud committed inter-jurisdictionally.

The Council of Europe Convention on Cybercrime (“Convention on Cybercrime”) is a treaty, created in November 2001 by the Council of Europe and non-member states, including Canada, Japan, South Africa and the United States. It came into effect in July 2014.

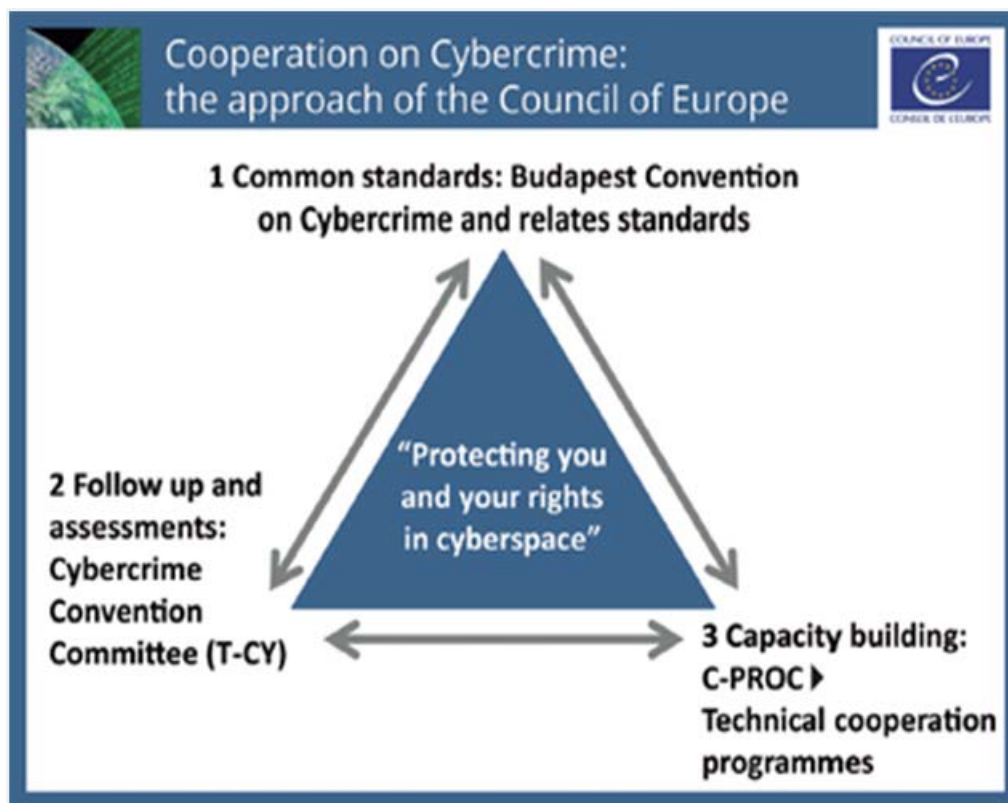
In support with the MLATs, the Convention on Cybercrime facilitates the collection, retention and dissemination of computer data within a single jurisdiction and between signatory states.

Forty-seven states, including Canada and the other G7 countries, have ratified or signed the Convention on Cybercrime as of July 2015.

A distinction is made between signing and ratifying a convention. When a country signs a convention, it indicates general support for the framework of the convention, along with an intention to be legally bound by it; however, when a convention is ratified, the country becomes legally bound by it under international law. The Convention on Cybercrime is the only legally binding global instrument promoting international cybercrime cooperation.

The Convention on Cybercrime has three purposes:

1. To identify offences that each signatory state must criminalize under its domestic laws relating to the confidentiality, integrity and availability of computer data and systems (Articles 2–6), and offences committed by means of computers (Articles 7–10).
2. To provide for ancillary liability and sanctions (Articles 11–13).
3. To establish jurisdiction over offences related to Articles 2–11 (Article 22). The offences fall into four broad categories of computer-related crime: fraud and forgery; child pornography; copyright infringements; and security breaches (e.g. hacking, illegal data interception and system interferences that compromise network integrity and availability).



Because several countries have signed and/or ratified the Convention on Cybercrime, it is instrumental in enforcing global cybercrime legislation.

In addition to other requirements in the Convention, signatories must:

- Enact laws establishing jurisdiction over computer-related crime within their borders, or by their nationals abroad.
- Establish domestic procedures for detecting, investigating and prosecuting computer crimes, and collecting electronic evidence of any criminal offense.
- Assist, through law enforcement officials, other participating states by cooperating with "mutual assistance requests" from police "to the widest extent possible" (Articles 23–35). Given the inter-jurisdictional nature of cybercrime, mutual assistance provisions can be key to investigating and gathering the necessary evidence to successfully prosecute a cybercrime.

Main Thrust of Convention on Cybercrime

The Convention on Cybercrime is premised on the following efforts:

- Requiring participating states to enact legislation that grants broad search and seizure powers to law enforcement authorities, including the power to compel ISPs to intercept data transmissions.
- To provide assistance to police the storage and search of data transmissions.
- To compel ISPs to provide information about their individual customer to police.

Mutual Legal Assistance Treaty (MLAT)

MLATs largely focus on extradition and mutual assistance between nations, in investigating and gathering evidence of cybercrime offences.

- The extradition component targets cybercriminals who seek to escape prosecution by operating in countries with weak cybercrime laws.
- Mutual assistance provisions require countries to facilitate cross-border investigation “to the widest extent possible”: for instance, drafting mutual assistance treaties with particular countries, or responding to mutual assistance requests for particular investigations, in conformance with the Convention on Cybercrime.

An example of a specific request for mutual assistance would be when an official in one country asks another for access to, or the seizure or preservation of, data or equipment. Recall that physical evidence required to prosecute a cybercrime suspect can be located in any country.

Regulation of Cybercrime in Different Jurisdictions

- At the federal level, more than 75 per cent of countries in Africa, Asia, Oceania and the Americas have legislation to deal with cybercrime extradition and mutual legal assistance. However, the majority of these laws are not specific to cybercrime and instead deal with criminal matters generally.
- Canadian law enforcement officials have utilized MLATs to acquire evidence and assistance from other jurisdictions.
- European Union Member States, as of 2007, are a party to the European Union Mutual Legal Agreement of 2000. This Agreement facilitates contact between legal and judicial authorities within Member States, and supports the efforts in cross-border regulation of cybercrime.

Information Cooperation Networks

Cybercrime knows no borders. To effectively combat its negative impact, some countries have formed information cooperation networks.

Some information cooperation networks include the G8 and Council of Europe’s “24/7” networks. A benefit of such networks is that response times to urgent, transborder matters can be reduced greatly—days or hours, as opposed to months (e.g. for the sharing of identity or subscriber information, as well as requests for the expedited preservation of data or the provision of stored traffic data).

These networks can be facilitated by treaties or similar arrangements. For instance, countries can enter into MLATs that restrict information sharing between countries to information concerning criminal conduct under national laws.

On the other hand, if a country prefers to follow the mutual assistance provisions in the Convention on Cybercrime, it might insist that certain legal and procedural requirements are met first.

Dual Criminality

Article 25 of the Convention on Cybercrime, which deals with general principles relating to mutual assistance, states that a country receiving a request for information can make assistance conditional on the existence of dual criminality and deny the request in its absence.

The condition of dual criminality is met when a crime committed in the information-requesting country is also a crime in the other country. Under Articles 27, 29 and 30 of the Convention on Cybercrime, a party that receives a request for information and/or mutual assistance can refuse, postpone or partially grant the request. As such, a party is not necessarily required to cooperate with foreign officials in investigations in all cases.

Dual criminality exemplifies the need for uniformity in cybercriminal definition and prosecution, and is an essential ingredient in ensuring that relevant information can be gathered and shared in cross-border investigations, so offenders can be prosecuted. The legal complications stemming from dual criminality can be avoided when the signatory countries cooperate in creating uniform standards and comprehensive legislation.

Criminal Regulation

Criminal Code

Canadian Criminal Code

The Criminal Code contains provisions that can be used to target cybercriminals directly and indirectly. For instance, a theft offence under section 322 can capture most instances of “cyber theft.” If any aspect of a transnational offence occurred in Canada, such as through service providers, websites or other digital infrastructure located in Canada, then Canada would have jurisdiction to prosecute the offence.

Bill C-13

Bill C-13 is another response to gaps in Canada’s ability to prevent, investigate and prosecute cybercrime domestically and internationally (i.e. where our international partners request assistance).

Bill C-13 allows a judge:

- a. To issue a search warrant or a general warrant to make a production order, make a specific production order to obtain certain information (e.g. stored computer data), or make an assistance order; or
- b. To issue a warrant to use a tracking device or a transmission data recorder (clauses 8, 9 and 11).

Clause 20 of Bill C-13 allows law enforcement agents to acquire two new types of production orders, to obtain evidence from a telecommunications service provider: transmission data and tracking data.

Mutual Legal Assistance in Criminal Matters Act

Enacted in 1988, the Mutual Legal Assistance in Criminal Matters Act allows Canadian courts to issue subpoenas and search warrants to obtain evidence in Canada on behalf of a foreign state, for that state’s use in criminal investigation and prosecution.

The Commission of Competition, under Clause 37 of Bill C-13, is authorized to execute search warrants that are issued under the Mutual Legal Assistance in the Criminal Matters Act.

Other Efforts

The United Nations General Assembly has adopted resolutions on combating the criminal misuse of information technologies, resolutions that emphasize Member States’ efforts to eliminate “safe havens” for those who “criminally misuse information technologies.” The resolutions also foster cooperation in investigating and prosecuting cybercriminals through international law enforcement.

The Importance of Capacity Building and International Cooperation

The Council of Europe has focused on developing tools and strategies around the Convention on Cybercrime and, as a result, the Convention has served as a catalyst for the harmonization of legislation and multi-stakeholder cooperation (i.e. law of enforcement/legal/judicial/technical) around the world.

The Council of Europe's major objectives for dealing with cybercrime are:

- Establishing a global framework for efficient cooperation against cybercrime.
- Supporting the strengthening of legislation and capacity building.
- Facilitating the implementation of the Convention on Cybercrime.

To achieve these objectives, the Council of Europe has launched a global initiative to support the implementation of the Convention of Cybercrime and related standards/practices, including providing legislative advice to countries around the world.

The initiative entails activities and regional joint projects between the EU and the Council of Europe, including fostering good practices to combat cybercrime such as:

- Developing workable cybercrime, legislation in individual countries, as well as ensuring harmonized and effective cybercrime legislation.
- Establishing rule of law and human conditions and safeguards, as well as data protection and privacy principles.
- Limiting law enforcement powers.
- Enabling transborder access to data and jurisdiction.
- Fostering public/private intelligence exchange, including by ISPs.
- Establishing high-tech crime units and other specialized units.
- Administering law enforcement and judicial training.
- Facilitating financial investigations and asset recovery.
- Establishing domestic criminal law related to the sexual exploitation and abuse of children.
- Facilitating international police and judicial cooperation.
- Developing online tools for sharing information/expertise and good practices.
- Organizing global conferences on cooperation against cybercrime.

Module Summary

In this module you have learned:

1. Cybercrime transcends national boundaries and has global consequences.
2. Given the nature of the internet, it is impossible for any one country to solve the problem alone; the regulatory approach to cybercrime must be inter-jurisdictional.
3. Ratifying the Convention on Cybercrime was an important step toward harmonization of regulatory standards.

Knowledge Check

The following questions provide an opportunity for you to see what you remember and understand so far. Answer the questions to the best of your ability.

1. **The regulatory approach to cybercrime is inter-jurisdictional.**
 - a. True
 - b. False
2. **Which of the following are objectives of the Council of Europe, intended to solve the problems associated with cybercrime.**
 - a. To create global framework to increase cooperation against cybercrime
 - b. To support the strengthening of legislation and capacity building
 - c. To facilitate the implementation of the Convention on Cybercrime
 - d. All of the above
3. **The Canadian Criminal Code can be used to target cybercriminals.**
 - a. True
 - b. False
4. **The global regulation of cybercrime is meant to avoid problems of dual criminality.**
 - a. True
 - b. False
5. **To effectively combat the negative impact of cybercrime, different countries have formed information cooperation networks.**
 - a. True
 - b. False
6. **Much of an MLAT is focused on extradition and mutual assistance among nations, to investigate and gather evidence of cybercrime offences.**
 - a. True
 - b. False
7. **Without inter-jurisdictional regulation, a cybercriminal can move their operations to countries that have weaker cybercrime laws.**
 - a. True
 - b. False
8. **The Council of Europe has three main objectives when it comes to solving the problems associated with cybercrime.**
 - a. To create a global framework to increase cooperation against cybercrime
 - b. To support the strengthening of legislation and capacity building
 - c. To facilitate the implementation of the Convention on Cybercrime
 - d. All of the above

Answers:

1. True
2. All of the above
3. True
4. True
5. True
6. True
7. True
8. All of the above

You have completed: International Jurisdiction and the Regulation of Cyberspace

Remember to check the timeline before you proceed to the next module to ensure you have completed any assignments as required. Check with your instructor if you have any questions.